

25STCV31552 25STCV31552

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C735%2C09%2F01%2F2026

Source SHA-256: 0b1e2e05c7c0d35548a6e4d72809675909168ed331b7da2f8013ac7e870cb392

Case Number: 25STCV31552 Hearing Date: September 1, 2026 Dept: 735

Alesio v. Estate of Ulrich F. Keppler, et al.

Defendant's Motion to Compel Compliance with Subpoena for
Production of Personal Records from Jonathan Reith-Thompson, MFT and Sanctions
Against Plaintiff

BACKGROUND

On October 29, 2025, Plaintiff Kyle Alesio ("Plaintiff") filed a complaint against Defendants Estate of Ulrich F. Keppler, c/o Bruce Hitchman ("Defendant") and Empire West Property Management, Inc. On April 2, 2026, Defendant filed the instant amended motion to compel compliance with subpoena for production of personal records from Jonathan Reith-Thompson, MFT. On August 25, 2026, Defendant's counsel filed a declaration stating the subpoena for production of personal records was personally served on March 13, 2026.

No
opposition has been filed.

DISCUSSION

The
motion is denied for failure to give proper notice to the third-party deponent Jonathan Reith-Thompson. For a nonparty subpoena to be effective, a deposition subpoena must be personally served. (Code Civ. Proc., § 2020.220, subd. (b).) Personal service is a condition both for enforcement of the subpoena and for attendance at any court session purporting to enforce the subpoena. (Code Civ. Proc., §

2020.220, subd. (c).) The Rules of Court require that "[a] written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent ... be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.)

It is undisputed that deponent Jonathan Reith-Thompson is not a party to this action. Defendant's counsel's declaration filed August 25, 2026, shows proof of personal service of the subpoena on Jonathan Reith-Thompson on March 13, 2026. (Aldover Decl., ¶ 3, Ex. H.) However, the proof of service for Defendant's motion indicates the motion was served on Jonathan Reith-Thompson by U.S. Mail. Rule 3.1346 requires personal service of the motion itself, not just of the subpoena.

CONCLUSION

The court denies Defendant's motion to compel and for sanctions.

Defendant
to give notice.